No. 16-8083

IN THE UNITED STATES COURT OF APPEALS
FOR THE TENTH CIRCUIT

WESTERN WATERSHEDS PROJECT, *et al.*,

Plaintiffs-Appellants

v.

PETER K. MICHAEL, in his official capacity as
Attorney General of Wyoming, *et al.*,

Defendants-Appellees.

On Appeal from the United States District Court
for the District of Wyoming
The Honorable Scott W. Skavdahl
Case No. 15-CV-00169-SWS

BRIEF OF *AMICI CURIAE* FIRST AMENDMENT LEGAL SCHOLARS IN SUPPORT OF PLAINTIFFS-APPELLANTS AND SUPPORTING REVERSAL

ALAN K. CHEN
William M. Beaney Memorial
Research Chair and Professor of Law
University of Denver
Sturm College of Law
2255 East Evans Avenue
Denver, Colorado 80208
(303) 871-6283
achen@law.du.edu

EDWARD T. RAMEY
Tierney Lawrence LLC
225 East 16th Avenue, Suite 350
Denver, Colorado 80203
(720) 242-7585
eramey@tierneylawrence.com

TABLE OF CONTENTS

TABLE OF AUTHORITIES iv

INTRODUCTION AND SUMMARY OF THE ARGUMENT 1

INTEREST OF AMICI 5

STATEMENT OF THE CASE 6

ARGUMENT 9

I. THE FIRST AMENDMENT EXTENDS TO COVERAGE OF DATA COLLECTION BOTH AS SPEECH AND AS CONDUCT FACILITATING THE PRODUCTION OF SPEECH. 9

A. Data Collection is a Form of Expression. 10

B. Data Collection is a Form of Conduct Directly Promoting the Production of Speech. 15

C. Whether Data Collection is Viewed as Pure Speech or Conduct Preparatory to Speech, Laws that Target Such Activity Based on the Content of the Data are Subject to Strict Scrutiny. 19

II. THE DISTRICT COURT ERRED IN EXAMINING THE PLAINTIFFS' CLAIMS AS IF THEY SOUGHT A RIGHT OF ACCESS TO PRIVATE PROPERTY OR AN EXEMPTION FROM THE ENFORCEMENT OF A LAW OF GENERAL APPLICABILITY. 22

A. Nothing About Plaintiffs' Legal Claims Asserts a Constitutional Right of Access to Private Property. 22

B. The Wyoming Statute Is Not a Generally Applicable Law, But Specifically Targets Speech and Conduct Preparatory To Speech. 24

III. EVEN IF THE COURT HOLDS THAT SAMPLE COLLECTION IS NOT A FORM OF SPEECH, THE WYOMING'S PROVISIONS GOVERNING RECORDING SHOULD BE INVALIDATED. 29

CONCLUSION.....31

CERTIFICATES OF COMPLIANCE 32

TABLE OF AUTHORITIES

Cases

ACLU of Ill. v. Alvarez, 679 F.3d 583, 596 (7th Cir. 2012) 16, 20
ALDF v. Otter, 118 F.Supp.3d 1195, 1209 (D. Idaho 2015) 20, 29
Anderson v. City of Hermosa Beach, 621 F.3d 1051, 1062 (9th Cir. 2010) 18
Animal Legal Def. Fund v. Otter, 44 F. Supp. 3d 1009 (D. Idaho 2014) 14, 20
Bartnicki v. Vopper, 532 U.S. 514, 526-27 (2001) 17
Blackston v. State of Alabama, 30 F.3d 117 (11th Cir. 1994) 14, 29
Branzburg v. Hayes, 408 U.S. 665 (1972) 27, 28
Brown v. Entm't Merchs. Ass'n, 564 U.S. 786, 792 n.1 (2011) 18
Buehrle v. City of Key West, 813 F.3d 973, 977 (11th Cir. 2015) 25
Church of the Lukumi Babalu Aye, Inc. v. City of Hialeah, 508 U.S. 520 (1993) ..26
Citizens United v. Fed. Election Comm'n, 558 U.S. 310 (2010)..... 9, 16, 20
Cohen v. Cowles Media Co., 501 U.S. 663, 669-70 (1991) 24
Crawford v. Geiger, 996 F. Supp. 2d 603 (N.D. Ohio 2014)..... 14, 28, 30
ex parte Thompson, 442 S.W.3d 325, 337 (Tx. Crim. App. 2014) 18
Food Lion, Inc. v. Capital Cities/ABC, Inc., 194 F.3d 505 (4th Cir. 1999) 24, 27
Glik v. Cunniffe, 655 F.3d 78 (1st Cir. 2011) 14, 29
Houchins v. KQED, Inc., 438 U.S. 1 (1978).....27
Hudgens v. Nat'l Labor Relations Bd., 424 U.S. 507 (1976).....23
Iacobucci v. Boulter, 193 F.3d 14 (1st Cir. 1999) 14, 29
Joseph Burstyn Inc. v. Wilson, 343 U.S. 495, 501(1952) 15
Lloyd Corp. Ltd. v. Tanner, 407 U.S. 551 (1980).....23
Minneapolis Star & Tribune Co. v. Minn. Comm'r of Revenue, 460 U.S. 575 (1983).....18
N.Y. Times Co. v. United States, 403 U.S. 713, 717 (1971) 14
R.A.V. v. City of St. Paul, 505 U.S. 377 (1992) 25
Reed v. Town of Gilbert, 135 S. Ct. 2218 (2015) 20
Rideout v. Gardner, 838 F.3d 65 (1st Cir. 2016).....14
S.H.A.R.K. v. Metro Parks Serving Summit Cty., 499 F.3d 553, 560 (6th Cir. 2007) 16, 27
Sorrell v. IMS Health Inc., 564 U.S. 552 (2011) 14, 16, 20
U.S. West Inc. v. Fed. Commc'ns Comm'n, 182 F.3d 1224 (10th Cir. 1999) 14
United States v. O'Brien, 391 U.S. 367 (1968) 19
W. Watersheds Project v. Michael, No. 15-CV-00169-SWS, 2016 WL 3681441, at *11 (D. Wyo. July 6, 2016) 8, 22, 23, 28
Watchtower Bible & Tract Soc'y of N.Y. v. Vill. of Stratton, 536 U.S. 150, 160 (2002).....22

Zemel v. Rusk, 381 U.S. 1 (1965) 26

Statutes

St. Paul, Minn., Legis. Code § 292.02 (1990) 25
WYO. STAT. ANN. § 23-3-305 (2007). 28
WYO. STAT. ANN. § 40-21-101 (2015) 6
WYO. STAT. ANN. § 40-27-101 (2015) 3, 6
WYO. STAT. ANN. § 40-27-101 (2016) 1, 2, 4, 7, 8, 11, 25, 29
WYO. STAT. ANN. § 6-3-303 (1977).....24
WYO. STAT. ANN. § 6-3-414 (2015).....3, 6
WYO. STAT. ANN. § 6-3-414 (2016)..... 1, 2, 4, 7, 8, 11, 25, 29

Constitutional Provisions

U.S. CONST. Amend. I 9

Rules

Fed. R. App. P. 29(c)(5).....5

Other Authorities

ANTHONY ARTHUR, RADICAL INNOCENT: UPTON SINCLAIR 49 (2006).....12
Ashutosh Bhagwat, *Producing Speech*, 56 WM. & MARY L. REV. (2015).....9, 17
District Court Granted Defendants' Motion to Dismiss (D. Wyo. July 6, 2016) 8, 9, 11, 22, 23, 28
ERWIN CHEMERINSKY, CONSTITUTIONAL LAW: PRINCIPLES AND POLICIES 969-70 (5th ed. 2015).....21
First Am. Compl. For Declaratory and Injunctive Relief, (D. Wyo. Apr. 11, 2016) 7
Frederick Schauer, *The Boundaries of the First Amendment: A Preliminary Exploration of Constitutional Salience*, 117 HARV. L. REV. 1765 (2004).....9
Jane Bambauer, *Is Data Speech?*, 66 STAN. L. REV. 57, 70-77 (2014)..... 9, 15, 17
Justin Marceau & Alan K. Chen, *Free Speech and Democracy in the Video Age*, 116 COLUM. L. REV. 991 (2016)..... 15, 16, 18, 23
LARRY ALEXANDER, IS THERE A RIGHT OF FREEDOM OF EXPRESSION? 9 (2005) 21
Marc Jonathan Blitz, *The Right to Map (and Avoid Being Mapped): Reconceiving First Amendment Protection for Information-Gathering in the Age of Google Earth*, 14 COLUM. SCI. & TECH. L. REV. 115 (2013)..... 11, 12, 15, 17

Margot E. Kaminski, *Privacy and the Right to Record*, 97 B.U. L. REV. __ (forthcoming 2017).....15
Order Granting in Part and Denying in Part Defs.' Mot. To Dismiss, Docket No. 40 (Dec. 28, 2015) 3, 7
Seth F. Kreimer, *Pervasive Image Capture and the First Amendment: Memory, Discourse, and the Right to Record*, 159 U. PA. L. REV. 335 (2011).....15
Wesley J. Campbell, *Speech-Facilitating Conduct*, 68 STAN. L. REV. 1, 50-51 (2016).....15

INTRODUCTION AND SUMMARY OF THE ARGUMENT

Data is the lifeblood of speech. The Wyoming "Data Censorship Law," which regulates the collection and recording of information that is critical to informing public opinion and facilitating the functioning of democratic government processes implicates the First Amendment's guarantee of freedom of speech. Allowing the State to go unchecked when it chokes off access to such information is tantamount to permitting it to directly censor speech. This case is therefore fundamentally about individuals' constitutionally protected right to engage in expression or conduct preparatory to pure speech. Without the freedom to collect, record, and disseminate this information, not only are the Plaintiffs harmed, but also the public at large will be deprived of the opportunity to learn about information the Plaintiffs discover, deliberate over its meaning, and urge government representatives to take action.

At issue in this appeal is the part of Wyoming's 2016 law that imposes criminal and civil liability on any person who, intentionally or unintentionally, "[c]rosses private land to access adjacent or proximate land where he collects resource data." WYO. STAT. ANN. § 6-3-414(c)(i) (2016); WYO. STAT. ANN. § 40-27-101(c)(i) (2016) (hereinafter "subsection (c)). Because Plaintiffs have alleged that they have regularly engaged in collection of resource data on *public* lands and

that in carrying out these practices may inadvertently cross private land to do so, their First Amendment rights are directly affected by this law.

Subsection (c) law not only directly burdens expression covered by the First Amendment, but also does so in a content discriminatory manner. For this law is no ordinary trespass statute. Unlike generally applicable trespass laws, it uniquely imposes liability only on those who are engaged in collecting information pertaining to one subject – "resource data." The crux of the statute is the prevention of individuals from gathering information "relating to land or land use, including but not limited to data regarding agriculture, minerals, geology, history, cultural artifacts, archeology, air, water, soil, conservation, habitat, vegetation or animal species." *Id.* §§ 6-3-414(e)(iv); 40-27-101(h)(iii). "Collect" is broadly defined to mean to "*take a sample of material*, acquire, gather, *photograph or otherwise preserve information in any form* and the *recording of a legal description or geographical coordinates of the location of the collection*." *Id.* §§ 6-3-414(e)(i); 40-27-101(h)(i) (emphasis added). Thus, prohibited acts include collecting water and soil samples, taking hand written notes about resource data, photographing and video recording land, animals, or natural resources, all forms of expression or conduct preparatory to speech. Plaintiffs engage in these forms of data collection in order to disseminate information about Wyoming ecosystems to

the public and influence environmental rulemakings and other government regulatory actions.

In deciding this case, this Court should view the 2016 Wyoming law in light of its other provisions and its broader 2015 predecessor. As the District Court recognized in its original order, the 2015 statute raised "serious concerns and questions as to the Constitutionality of various provisions of these trespass statutes." Order Granting in Part and Den. in Part Defs.' Mot. To Dismiss at 38, *W. Watersheds Project v. Att'y Gen.*, No. 2:15-cv-00169-SWS, (D. Wyo. Dec. 28, 2015) (hereinafter "2015 Order"). The prior version of the law prohibited collection of resource data only if it was "submitted or intended to be submitted to any agency of the state or federal government, WYO. STAT. ANN. §§ 6-3-414(d)(i) (2015), and required government agencies to expunge any data collected in violation of its provisions and forbade them to consider such data in carrying out their governmental duties. WYO. STAT. ANN. §§ 6-3-414(e), (f); 40-27-101(d)-(f) (2015). The State's attempt to cure the constitutional defects pervading the original law do not diminish its faintly disguised effort to regulate expressive activity, not property rights. Although the State modified the definition of "collect" under the 2016 law, that definition reveals its continued desire to silence those who report information to the government. Furthermore, though not before this Court in this appeal, the 2016 statute still requires Wyoming state agencies to

expunge data collected in violation of the law and similarly forbids them to use the data in any governmental proceeding, WYO. STAT. ANN. §§ 6-3-414(f), (g); 40-27-101(f), (g) (2016), thus underscoring its censorial motives.

The fact that the Wyoming law purports to be concerned only with private property does not insulate it from First Amendment scrutiny. While Plaintiffs routinely collect resource data from public lands, they sometimes inadvertently cross private property to access those areas. In the western United States, property boundaries are not always clearly marked and public and private lands commonly intersect in unpredictable and unidentifiable ways. By imposing strict criminal and civil liability on those who cross private land to collect resource data from public land, the law deters the Plaintiffs from expressive activity. The Data Censorship Law thereby has a real chilling effect on activists and journalists who wish to engage in resource data collection to report about animal welfare, wildlife, and the environment.

Amici offer this brief to elaborate on two main points. First, all data collection, but especially note taking, photography, and video recording, is a form of speech or conduct preparatory to speech covered by the First Amendment. The Wyoming law impedes the collection of information and thereby prevents its conveyance to government officials on matters of great public concern. Second, laws that target a particular substantive category of information, such as resource

data, discriminate against expressive activity on the basis of its content, and are therefore analytically distinct from content neutral laws of general applicability such as ordinary trespass laws. Accordingly, the Wyoming law should be viewed with suspicion and skepticism under the most rigorous level of judicial scrutiny.

INTEREST OF AMICI[1]

Amici are law professors whose teaching and scholarship examines First Amendment law and theory. They respectfully offer their expertise in aid of the Court's resolution of this case. Specifically, amici emphasize the free speech implications of laws that suppress collection, gathering, and recording of data, which is both inherently expressive within the meaning of the First Amendment and also involves conduct that is a necessary precursor to pure speech.

- Jane Bambauer is an Associate Professor of Law at the University of Arizona James E. Rogers College of Law. Her scholarship focuses on law and technology and data governance, including First Amendment protection for data.

- Ashutosh Bhagwat is the Martin Luther King, Jr. Professor of Law at the UC Davis School of Law. His scholarship focuses on the First Amendment, including First Amendment protection for the production of speech.

[1] This brief has been prepared and joined by individuals affiliated with various law schools, but does not represent any school's institutional views. In accordance with Rule 29(c)(5) of the Federal Rules of Appellate Procedure, amici represent that no party's counsel authored this brief in whole or part, and no person or persons other than *amici curiae* contributed money intended to fund the preparation or submission of this brief.

• Erwin Chemerinsky is the founding Dean and Distinguished Professor of Law, and Raymond Pryke Professor of First Amendment Law, at University of California, Irvine School of Law. His extensive scholarship focuses on constitutional rights and the First Amendment.

• Alan K. Chen is the William M. Beaney Memorial Research Chair and Professor of Law at the University of Denver Sturm College of Law. His scholarship focuses on a wide range of issues concerning free speech doctrine and theory, including the right to record.

• Heidi Kitrosser is a Professor of Law at The University of Minnesota Law School. She is an expert on the constitutional law of federal government secrecy and on separation of powers and free speech law more broadly and has written, spoken, and consulted widely on these topics.

• Seth Kreimer is the Kenneth W. Gimmill Professor of Law at the University of Pennsylvania Law School. He is nationally recognized expert in a wide range of constitutional law topics, but his more recent work has focused on government transparency and the right to engage in audiovisual recording.

STATEMENT OF THE CASE

In 2015, Wyoming enacted laws that imposed criminal punishment and civil liability on individuals who enter open land to collect and disseminate resource data. WYO. STAT. ANN. §§ 6-3-414; 40-27-101 (2015). The laws prevented citizen

scientists, whistleblowers, and journalists from discovering and communicating about harmful practices of great public concern. In response, Plaintiffs-Appellants (Western Watersheds Project, the National Press Photographers Association, and the National Resources Defense Council) (hereinafter, "Plaintiffs") filed suit to challenge the constitutionality of the statute. Plaintiffs argued that the 2015 statutes violated, among other things, the First Amendment's Petition and Free Speech Clauses. The Court granted in part and denied in part the Defendants' motion to dismiss, acknowledging "serious concerns and questions as to the Constitutionality of various provisions of these trespass statutes." 2015 Order, at 38.

The Wyoming legislature promptly amended the 2015 laws. The 2016 amendments altered, but did not eliminate, the provisions banning collection of resource data on public lands; removed the requirement that data be submitted or intended to be submitted to a governmental agency; and modified the definition of "collect." WYO. STAT. ANN. §§ 6-3-414(e)(i); 40-27-101(h)(i) (2016). Notwithstanding the Wyoming legislature's post-litigation handiwork, the purpose and effect of the 2016 laws remain consistent and manifest on the face of the statutes – to target and prevent individuals from collecting "resource data" under the guise of a generally applicable trespass law.

On April 11, 2016, Plaintiffs amended their complaint and again asserted that the law violated the Free Speech Clause. First Am. Compl. For Declaratory

and Injunctive Relief, *W. Watersheds Project v. Att'y Gen.*, No. 2:15-cv-00169-SWS, (D. Wyo. Apr. 11, 2016) (hereinafter "Compl."). Plaintiffs argued that the law violates the First Amendment by imposing liability for trespass *only* if an individual "recorded what they observed without first obtaining permission from the landowner to enter or cross the land to collect that specific information." *Id*. at para. 93. Furthermore, Plaintiffs argued that "[m]uch of Wyoming is comprised of undeveloped lands that include no visible demarcations that separate public and private lands . . . . This uncertainty, coupled with the fear that a literal misstep could trigger the penalties of both the criminal and civil laws, significantly chills Plaintiffs' ability to carry out their organizational activities and missions." *Id.* at para. 81.

The District Court granted Defendants' motion to dismiss in part on the ground that Plaintiffs do not have a constitutionally protected right to trespass upon private land in order to collect resource data[2] *W. Watersheds Project v. Att'y Gen.*, No. 2:15-cv-00169-SWS (D. Wyo. July 6, 2016) (hereinafter "2016 Order"). On appeal, the Plaintiffs have narrowed their claim to challenge only subsection (c), which imposes strict criminal and civil liability for "crossing" private land to

[2] The Court also dismissed Plaintiffs claims that the law is unconstitutionally overbroad and violates the Equal Protection Clause.

collect resource data on adjacent or proximate land. WYO. STAT. ANN. §§ 6-3-414(c); 40-27-101(c) (2016).

ARGUMENT

I. THE FIRST AMENDMENT EXTENDS TO COVERAGE OF DATA COLLECTION BOTH AS SPEECH AND AS CONDUCT FACILITATING THE PRODUCTION OF SPEECH.

The First Amendment prohibits federal and state governments from abridging the freedom of speech. U.S. CONST. amend. I. Its coverage clearly reaches pure expression, such as speaking and writing. But the First Amendment's scope extends well beyond overtly expressive activity to encompass conduct that is preparatory to and intimately connected with the creation of knowledge and production of speech. *See, e.g.*, *Citizens United v. Fed. Election Comm'n*, 558 U.S. 310, 336 (2010). *See also* Jane Bambauer, *Is Data Speech?*, 66 STAN. L. REV. 57, 63 (2014); Ashutosh Bhagwat, *Producing Speech*, 56 WM. & MARY L. REV. 1029, 1035 (2015).

Courts and legal scholars alike routinely grapple with the so-called "coverage" question, which focuses on which activities count as "speech" such that constitutional scrutiny is warranted. Frederick Schauer, *The Boundaries of the First Amendment: A Preliminary Exploration of Constitutional Salience*, 117 HARV. L. REV. 1765, 1768 (2004). The District Court mistakenly rejected the notion that resource data collection under the Wyoming law is even covered by the

First Amendment because as defined by the statute it involved conduct on private property. 2016 Order at 16. But data collection is properly understood as either speech or conduct preparatory to speech, and is therefore subject to First Amendment scrutiny.

A. Data Collection is a Form of Expression.

By imposing criminal and civil liability on the act of resource data collection, the Wyoming law directly affects purely expressive activity. Unlike a general restriction on conduct, the Wyoming statute forbids individuals from crossing private land without the owner's consent *only* if they are doing so to collect resource data. The definition of "collect" under the 2016 law is, to be kind, inelegantly drafted. Although the definition is ambiguous, the best reading of the statutory language is probably that one is liable for crossing private land to gain access to adjacent public land to take "a sample of material, acquire, gather, photograph, or otherwise preserve information in any form" *and* make a "recording of a legal description or geographical coordinate of the location of the collection." On this reading, one must do one of the first acts (take a sample or acquire, gather, photograph, or otherwise preserve information) while also recording one's location ("conjunctive interpretation"). This was the District Court's interpretation in its order granting the motion to dismiss. Alternatively, the statute might be read to authorize criminal or civil liability on a person who commits any *one* of three types

of data collection (sample collection, information acquisition or recording, or recording of location information) ("disjunctive interpretation").[3] Under either reading, however, the law uniquely targets the Plaintiffs and others like them who engage in investigations to discover information about water and air quality, land use, and animal welfare only to identify and report violations of federal, state, and local environmental regulations.

Under the conjunctive interpretation, the law's provisions forbid anyone to *either* "take a sample of material" or "acquire, gather, photograph, or otherwise preserve information in any form" and in doing so *also* record the location where those acts take place. The First Amendment implications of this provision are quite clear. On this reading, all violations of the law necessarily involve the "recording of a legal description or geographical coordinate of the location of the collection." WYO. STAT. ANN. §§ 6-3-414(e)(i); 40-27-101(h)(i) (2016). The act of recording one's location implicates the First Amendment because it involves both the processing and memorializing of information, either by eye and hand or with the aid of technological tools. The use of technology or other means to record

[3] Amici note that the District Court relied on the conjunctive interpretation in rejecting the Plaintiffs' claim that the law is unconstitutionally overbroad. 2016 Order, at 16-20. Should this Court disagree with the conjunctive interpretation, it should consider remanding the case to the District Court to reconsider its overbreadth determination in light of the substantial amount of expressive activity that would be prohibited under the disjunctive interpretation.

one's location implicate the First Amendment because they "can be understood . . . as an extension of our perception." Marc Jonathan Blitz, *The Right to Map (and Avoid Being Mapped): Reconceiving First Amendment Protection for Information-Gathering in the Age of Google Earth*, 14 COLUM. SCI. & TECH. L. REV. 115, 129 (2013).

Imagine, for example, that the state enacted a law prohibiting individuals from taking handwritten notes about the things they observed regarding a particular subject matter and the specific location where they made those observations. Not only is the processing of information a critical element of communication, but also the memorialization of one's observations and description of one's location are inherently expressive. Indeed, one's imagination need not wander far to find an iconic example of this behavior and its relationship to free speech. The famous muckracking journalist Upton Sinclair used exactly this investigative process to obtain information about Chicago's meatpacking industry by wandering around the private premises of industry facilities, observing treatment of workers and animals, and writing down his notes for later reporting. ANTHONY ARTHUR, RADICAL INNOCENT: UPTON SINCLAIR 49 (2006). Were a modern day Sinclair to inadvertently step on Wyoming private property while traveling to public lands to report similar observations while also noting where he made those observations,

the Data Censorship Law would brand him a criminal and allow landowners to sue him for damages.

Furthermore, under either the conjunctive or disjunctive interpretations of the 2016 statute, each manner of data collection proscribed is also uniquely communicative. The collection of samples of materials, such as water and soil, involves a form of expression-related observation, even if the full import of that observation is not verified until a later time through scientific testing. Observations about the signs of environmental quality problems, such as the sight and smell of water or soil, which might trigger the need to investigate in the first instance, are analogous to the process of taking in information in other ways similarly restricted by the law's prohibitions. In such a case, the collection of a sample is analogous to the taking of notes or of still or video photography because it similarly memorializes the content of the observation.

Similarly, the acts of acquiring, gathering, photographing, or otherwise preserving information are also expressive in a constitutionally relevant manner. This provision of subsection (c) prohibits one from acquiring information through personal visual and aural intake and engaging in any form of recording those observations, such as taking handwritten notes, dictating into an audio recorder, or still and video recording. Similarly, the act of recording one's location is expressive in that it both notes and describes a particular type of data, which

communicates where the other activities have taken place and documents the specific location of a potential law violation.

The weight of judicial authority supports the conclusion that data is speech and that both its collection and dissemination are forms of expression covered by the First Amendment. Indeed, the Supreme Court has declared that "facts . . . are the beginning point for much of the speech that is most essential to advance human knowledge and to conduct human affairs." *Sorrell v. IMS Health Inc.*, 564 U.S. 552, 570 (2011) . *See also N.Y. Times Co. v. United States*, 403 U.S. 713, 724 (1971) (Douglas, J, concurring) (speech interests existed in underlying data of the Pentagon Papers); *U.S. West Inc. v. Fed. Commc'ns Comm'n*, 182 F.3d 1224 (10th Cir. 1999) (First Amendment protects telecommunication company's use of data for advertising purposes).

One form of data collection, audio and video recording has been found to be a form of expression subject to constitutional protection by numerous courts. *See Glik v. Cunniffe*, 655 F.3d 78, 82 (1st Cir. 2011); *Iacobucci v. Boulter*, 193 F.3d 14, 25 (1st Cir. 1999); *Blackston v. State of Alabama*, 30 F.3d 117, 120 (11th Cir. 1994); *Animal Legal Def. Fund v. Otter*, 44 F. Supp. 3d 1009, 1023 (D. Idaho 2014); *Crawford v. Geiger*, 996 F. Supp. 2d 603, 617 (N.D. Ohio 2014); *see also Rideout v. Gardner*, 838 F.3d 65, 75 (1st Cir. 2016) (holding that law banning so-called "ballot selfies" violate First Amendment because of "special communicative

value" in memorializing such images). Video recording is a particularly acute form of speech production. Movies, photographs, and other recorded images have long been recognized as speech shielded from government restriction by the First Amendment. *See Joseph Burstyn Inc. v. Wilson*, 343 U.S. 495, 501 (1952) ("It cannot be doubted that motion pictures are a significant medium for the communication of ideas."). Although a few courts have rejected the claim that video recording is speech, they have largely done so by assertion, rather than careful analysis. Seth F. Kreimer, *Pervasive Image Capture and the First Amendment: Memory, Discourse, and the Right to Record*, 159 U. PA. L. REV. 335, 368 (2011).

Scholarly opinion, too, consistently supports the claim that data collection, and especially video recording, is speech. Bambauer, 66 STAN. L. REV. at 84-86; Blitz, 14 COLUM. SCI. & TECH. L. REV. at 144-45; Wesley J. Campbell, *Speech-Facilitating Conduct*, 68 STAN. L. REV. 1, 50-51 (2016); Margot E. Kaminski, *Privacy and the Right to Record*, 97 B.U. L. REV. __ (forthcoming 2017); Kreimer, 159 U. PENN. L. REV. at 373-74; Justin Marceau & Alan K. Chen, *Free Speech and Democracy in the Video Age*, 116 COLUM. L. REV. 991, 1017 (2016).

B. Data Collection is a Form of Conduct Directly Promoting the Production of Speech.

Even if this Court does not view resource data collection as purely expressive, long-standing constitutional doctrine also extends First Amendment

protections beyond traditional modes of speech to cover conduct that is preparatory to more conventional communicative acts. Thus, in addition to overt speech, the First Amendment reaches conduct that is necessary to the production of speech. *IMS Health*, 564 U.S. at 570 ("This Court has held that the creation and dissemination of information are speech within the meaning of the First Amendment."); *Citizens United*, 558 U.S. at 336, 356 (observing that "laws enacted to control or suppress speech may operate at different points in the speech process" and that campaign spending is conduct preparatory to speech); *ACLU of Ill. v. Alvarez*, 679 F.3d 583, 596 (7th Cir. 2012) ("[T]here is no fixed First Amendment line between the act of creating speech and the speech itself. . . .").

As commentators have noted,

> The obliteration of the means of producing expression endangers free expression no less than the censorship of the speech itself. In prior centuries, this might have involved destruction of printing presses; today, it might involve smashing video recorders.

Marceau & Chen, 116 COLUM. L. REV. at 1017 (footnotes omitted).

Courts have recognized that First Amendment protections encompass data collection because such action is necessary conduct in preparation of speech. *Alvarez*, 679 F.3d at 595-97 (7th Cir. 2012) ("The act of *making* an audio or audiovisual recording is necessarily included within the First Amendment[]. . . as a corollary of the right to disseminate the resulting recording."); *see also S.H.A.R.K. v. Metro Parks Serving Summit Cty.*, 499 F.3d 553, 560 (6th Cir. 2007). Just as a

recorded image cannot be fully protected if the government can restrict the act of creating that image, the creation and collection of data generally receives First Amendment protections so that people can communicate that data. *See* Bambauer, 66 STAN. L. REV. at 70 ("When data is created to inform a broad public audience, or even to inform a specific audience, its conceptual similarities to pamphlets and other types of traditional speech are obvious."). A great deal of academic commentary is in accord. *Id*. ("the collection of data is a necessary precursor to having and sharing it"); Bhagwat, 56 WM. & MARY L. REV. at 1058 ("the Court has long interpreted the Speech Clause to extend penumbral protection to conduct closely associated with speech"); Blitz, 14 COLUM. SCI. & TECH. L. REV. at 154-55 ("It is hard to see how such peripheral rights could fail to include the right to have access to the media and tools that make speech possible").

Accordingly, governments may not circumvent the First Amendment merely by targeting conduct that necessarily occurs prior to speech instead of the speech itself. *Bartnicki v. Vopper*, 532 U.S. 514, 526-27 (2001). Without such protection, the state would be allowed to bypass First Amendment scrutiny simply by cutting off speech before it can ever emerge, such as by targeting the creation or distribution of a newspaper instead of the newspaper's content. Indeed, properly understood, conduct preparatory to speech is so intertwined with speech itself that it is conceptually difficult to comprehend the difference from an analytical

standpoint. *See Brown v. Entm't Merchs. Ass'n*, 564 U.S. 786, 792 n.1 (2011) ("Whether government regulation applies to creating, distributing, or consuming speech makes no difference."); *Anderson v. City of Hermosa Beach*, 621 F.3d 1051, 1062 (9th Cir. 2010) ("The process of expression through a medium has never been thought so distinct from the expression itself that we could disaggregate Picasso from his brushes and canvas, or that we could value Beethoven without the benefit of strings and woodwinds."); *ex parte Thompson*, 442 S.W.3d 325, 337 (Tx. Crim. App. 2014) ("Using a camera to create a photograph or video is like applying pen to paper to create a writing or applying a brush to canvas to create a painting. In all of these situations, the process of creating the end product cannot reasonably be separated from the end product for First Amendment purposes."); *accord Minneapolis Star & Tribune Co. v. Minn. Comm'r of Revenue*, 460 U.S. 575, 592-93 (1983) (recognizing that taxation of newspaper ink is unconstitutional even though the law neither barred publication nor regulated content). *See also* Marceau & Chen, 116 COLUM. L. REV. at 1019 (describing conduct preparatory to speech as part of a continuum of expression).

Subsection (c)'s imposition of strict criminal and civil liability on those who cross private land in order collect resource data directly burden a person's ability to collect (record) these data (facts). Accordingly, the Wyoming statute necessarily interferes with that person's ability to disseminate the collected data, whether to a

government agency or elsewhere, triggering a heightened form of review under the First Amendment.

It is also worth noting that the First Amendment law governing conduct preparatory to speech falls under a distinct analytical framework from that applied to expressive or symbolic conduct. Under the latter cases, the Supreme Court has imposed a less rigorous test for examining whether restrictions on expressive conduct are constitutional. In *United States v. O'Brien*, the Court held that nonverbal conduct may not be covered by the First Amendment when "the governmental interest [in regulating that conduct] is unrelated to the suppression of free expression." 391 U.S. 367, 377 (1968). Those cases are completely inapposite to laws regulating conduct preparatory to speech, which is part of the speech process itself, as opposed to a symbol or representative conveyance of an idea or particularized message. But there is also an independent reason the symbolic speech cases do not apply case here – the Wyoming law is overtly content based.

C. Whether Data Collection is Viewed as Pure Speech or Conduct Preparatory to Speech, Laws that Target Such Activity Based on the Content of the Data are Subject to Strict Scrutiny.

Under either way of conceptualizing data collection, as speech or conduct preparatory to speech, the full architecture of First Amendment analysis attaches. Thus, laws that target data collection based on the speaker's viewpoint or the

content of the data are subject to strict scrutiny. Here, the Wyoming law is content based on its face because it regulates First Amendment activity relating to collection of only one type of content – resource data – and not to other types of information. A person who travels across private land to adjacent public land to collect information about taxes, health care policy, or a celebrity siting would not violate the Wyoming statute. For that matter, a person who crossed such land to acquire information about *any other subject other than resource data* would not be subject to the law's criminal or civil sanctions. Courts that have examined such laws have not been hesitant to apply the traditional strict scrutiny test to content based laws targeted at speech or speech related conduct. *See Reed v. Town of Gilbert*, 135 S. Ct. 2218, 2228 (2015) ("strict scrutiny applies *either* when a law is content based on its face or when the purpose and justification for the law are content based") (emphasis added); *Citizens United*, 558 U.S. at 340; *IMS Health*, 564 U.S. at 570; *Alvarez*, 679 F.3d at 603; *Animal Legal Def. Fund v. Otter*, 118 F.Supp.3d 1195, 1202-03 (D. Idaho 2015).

Under this analysis, content based laws are presumptively unconstitutional, and may only survive judicial review if the state can show that the law is narrowly tailored to serve a compelling governmental interest. *Citizens United*, 558 U.S. at 340. As the Plaintiffs persuasively argue in their opening brief, no interest put forth by Wyoming for prohibiting inadvertent crossing of private land to collect

resources data could possibly be viewed as compelling, much less important. Moreover, to the extent any legitimate state interest might exist, the Wyoming law can hardly be construed to be narrowly tailored to advance such an interest.

Application of strict scrutiny to subsection (c) is also consistent with the core purposes underlying the First Amendment. Constitutional protections for speech serve multiple purposes, including the promotion of democratic self-governance, the facilitation of the search for truth even beyond the political realm, and the enhancement of individuals' autonomy and self-fulfillment. ERWIN CHEMERINSKY, CONSTITUTIONAL LAW: PRINCIPLES AND POLICIES 969-70 (5th ed. 2015). The Wyoming law impedes the gathering of information essential to the proper functioning of government processes, such as the enforcement of environmental regulations. Restrictions on the collection and recording of data also implicate the search for broader moral and aesthetic truths about the surrounding environment where one gathers and processes that information and impairs individuals' autonomy by restricting their ability to perceive and document their immediate surroundings. Yet another rationale frequently offered for protection of speech is that there are serious reasons to question the state "whenever an activity is suppressed or penalized for the purpose of preventing a message from being received." LARRY ALEXANDER, IS THERE A RIGHT OF FREEDOM OF EXPRESSION? 9 (2005). Here, subsection (c)'s restrictions on

gathering, collecting, recording, and consequently on disseminating, different types of data surely seem designed to prevent government actors from receiving the information Plaintiffs seek to collect and provide.

II. THE DISTRICT COURT ERRED IN EXAMINING THE PLAINTIFFS' CLAIMS AS IF THEY SOUGHT A RIGHT OF ACCESS TO PRIVATE PROPERTY OR AN EXEMPTION FROM THE ENFORCEMENT OF A LAW OF GENERAL APPLICABILITY.

Although the District Court acknowledged that the First Amendment applies in some manner to the creation of speech, it rejected the Plaintiffs' arguments on two bases that reveal the court's fundamental misunderstanding of their legal claims. First, the Court wrongly understood this case to be asserting a First Amendment right of access to engage in speech on private property. Second, it mistakenly equated the Plaintiffs' claims with an assertion of a right to be exempt from laws of general applicability. Here, amici demonstrate why both of those assertions are flawed.

A. Nothing About Plaintiffs' Legal Claims Asserts a Constitutional Right of Access to Private Property.

The District Court erred in viewing this case as a claim to a right of access to private property. It fundamentally misunderstood and misapplied the First Amendment's relationship to private property by declaring that "[t]he lack of public First Amendment rights upon private property is not new or novel." 2016 Order, at 14. Private property *owners* are not bound by the First Amendment for

the simple reason that they are not state actors. *Lloyd Corp., Ltd. v. Tanner*, 407 U.S. 551, 567 (1980); *Hudgens v. Nat'l Labor Relations Bd.*, 424 U.S. 507, 521 (1976). However, the First Amendment does not vanish simply because one has moved from a public sidewalk to a private lawn. *See Watchtower Bible & Tract Soc'y of N.Y. v. Vill. of Stratton*, 536 U.S. 150, 160 (2002) (holding that, despite a private property owner's ability to bar solicitation at his private residence, the *government* cannot prohibit such solicitation).

Moreover, in no way are Plaintiffs asserting a right to gain access to engage in *overt speech* on private property. They simply seek to enjoin state-sanctioned punishment for crossing private land to engage in speech producing activity on adjacent public lands. *See* Marceau & Chen, 116 COLUM. L. REV. at 1027-31 (distinguishing right to record claims from right of access claims). The First Amendment is not implicated in this case because some private property owners wish to keep the Plaintiffs off of their property. Indeed, they are already free to do so and the ordinary Wyoming trespass laws fully protect their property interests in this regard. Rather, the Free Speech Clause applies here because the Wyoming legislature enacted laws that impose criminal and civil liability specifically on conduct preparatory to speech.

The District Court reasoned that "if a landowner wishes to grant access or use of his property for a limited purpose, he has every right to do so." 2016 Order,

at 18. This is true on its face, but the District Court seems to misunderstand the facts of this case. At issue here is not the limited admission of persons onto private property, but the *state's* action in both restricting and chilling speech production on public land that has at most a tangential or ephemeral relation to adjacent private property.

B. The Wyoming Statute Is Not a Generally Applicable Law, But Specifically Targets Speech and Conduct Preparatory To Speech.

While the First Amendment applies to laws that specifically target speech acts and conduct preparatory to speech, the Constitution does not require a special free speech exemption from generally applicable laws that incidentally affect expression. *See Cohen v. Cowles Media Co.*, 501 U.S. 663, 669-70 (1991); *Food Lion, Inc. v. Capital Cities/ABC, Inc.*, 194 F.3d 505, 520 (4th Cir. 1999). Thus, a law that prohibits *all* trespassing, without regard to the trespasser's purpose – whether they have a speech or non-speech purpose, or no purpose at all – would not violate the First Amendment even if it made it more difficult to speak to someone on their private property. Such a law is already in place. WYO. STAT. ANN. § 6-3-303(a) ("A person is guilty of criminal trespass if he enters or remains on or in the land or premises of another person, knowing he is not authorized to do so, or after being notified to depart or to not trespass.").

The District Court mistakenly analyzed the Wyoming statute as if it were neutral. In fact, the law specifically targets the speech process by "proceed[ing]

upstream and dam[ming] the source" of disfavored speech. *Buehrle v. City of Key West*, 813 F.3d 973, 977 (11th Cir. 2015) (holding that because tattoos are protected speech the state cannot burden the public's ability to obtain a tattoo and the artist's ability to create a tattoo). Subsection (c) imposes strict criminal and civil liability only on persons who cross private lands to reach public lands to gather information and record what they observe. WYO. STAT. ANN. §§ 6-3-414(c); 40-27-101(c).

Subsection (c) must be analyzed, therefore, for what it is – state action that directly targets and treats differently the expressive elements of the prohibited conduct. In this way, the law is more like the ordinance at issue in *R.A.V. v. City of St. Paul*, 505 U.S. 377 (1992). There, the Court invalidated the conviction of a person who burned a cross on the private property of a black family under a city ordinance that criminalized the act of placing "on public or private property a symbol, object, appellation, characterization or graffiti, including, but not limited to, a burning cross or Nazi swastika, which one knows or has reasonable grounds to know arouses anger, alarm or resentment in others on the basis of race, color, creed, religion or gender commits disorderly conduct and shall be guilty of a misdemeanor." *Id*. at 380 (quoting St. Paul, Minn., Legis. Code § 292.02 (1990)). Although the person charged with the offense was not engaged in an act that would otherwise be protected speech, the Court emphasized that because the law targeted

conduct based on the speaker's viewpoint, it was subject to strict scrutiny. *Id*. at 391. Notably, there, a generally applicable law prohibiting all fighting words would be constitutional, but not a law singling out fighting words conveying a particular viewpoint. *Cf. Church of the Lukumi Babalu Aye, Inc. v. City of Hialeah*, 508 U.S. 520, 531-32 (1993) (distinguishing laws of general application that incidentally burden free exercise from laws that are directly targeted at a particular religious sect).

The Data Censorship Law seemingly prohibits conduct for putatively non-speech reasons, but does so in a way that blatantly reveals the state's intent to inhibit expression. Plaintiffs' suggestion that the Wyoming law operates like a hypothetical traffic law that imposes higher penalties when the driver is speeding to get to a political rally reveals the fundamental flaw in the District Court's reasoning. *See* Opening Brief of Appellants, at 33. While a generally applicable speeding law might incidentally burden the speaker by delaying the time before she can reach the rally, it does not implicate the First Amendment. Like subsection (c), the "speeding to political rallies" law putatively focuses on a neutral state interest (traffic safety), but on its surface targets only people because they desire to produce speech.

Reflecting its misunderstanding of this principle, the District Court erroneously relied on cases in which claimants unsuccessfully asserted that they

had a First Amendment right to be *exempt from otherwise generally applicable laws*, something the Plaintiffs here do not claim. For example, the court relied on cases rejecting a so-called newsgatherer's privilege, in which journalists sought exemption from general laws, such as the enforcement of a subpoena to testify before a grand jury, *Branzburg v. Hayes*, 408 U.S. 665, 697 (1972), a ban on all U.S. citizens traveling to Cuba, *Zemel v. Rusk*, 381 U.S. 1, 16-17 (1965), and a general prohibition on access to interview county jail detainees, *Houchins v. KQED, Inc.*, 438 U.S. 1, 3 (1978) (plurality) (describing issue as whether news media have a constitutional right of access "over and above that of other persons"). Indeed, for these cases to be analogous to the case at hand, the government would have had to impose a heightened sanction only against reporters who refused to testify before the grand jury, the U.S. would have had to implement a law restricting travel to Cuba for the purposes of information gathering, and the jail would have had to impose a ban on access to the jail only for the purpose of collecting data about prisoners. *See also Food Lion*, 194 F.3d at 521-22 (holding that journalists are not immune from *generally applicable* torts); *S.H.A.R.K.*, 499 F.3d at 559-60 (holding that First Amendment interests were limited in the face of generally applicable laws).[4]

[4] Even as they reasoned that individuals cannot claim speech exemptions from generally applicable laws, both the Fourth and Sixth Circuits recognized that restrictions on

Furthermore, Plaintiffs do not assert any sort of special newsgatherer's privilege. The Supreme Court has recognized that newsgathering is an important function that receives at least some First Amendment protection. *See Branzburg*, 408 U.S. at 707. This function is not limited to professional journalists, but extends to all persons as "[t]he press in its historic connotation comprehends every sort of publication which affords a vehicle of information and opinion." *Id.* at 703 (citation omitted). In contemporary society, all persons may play this important role, particularly as "[t]echnology has put the ability to gather and disseminate newsworthy information literally in the hands of anyone who has a cell phone." *Crawford v. Geiger*, 996 F. Supp. 2d at 614.

Finally, in response to Plaintiffs' claims that the Wyoming statute is constitutionally suspect because it singles out trespass related to expression, the District Court mistakenly compared the law in question to Wyoming's anti-trespassing hunting statute. 2016 Order, at 24. The hunting statute is a permissible addendum to Wyoming's generally applicable trespass statute because, unlike with speech, there are distinct state interests associated with hunter trespassing that the state is entitled to address through enhanced penalties. Unlike the actions prohibited by the Data Censorship Law, trespass by hunters is more harmful than

---

information gathering nonetheless implicate the First Amendment. *S.H.A.R.K.*, 499 F.3d at 560; *Food Lion*, 194 F.3d at 520.

general trespass because weapons, unlike video cameras, carry inherent dangers to persons, property, and wildlife and the state has unique caretaking responsibilities for wildlife and the environment. WYO. STAT. ANN. § 23-3-305(b) (2007). In contrast, the Data Censorship Law directly regulates only trespass involving expressive activity. Hunting stands apart from speech. Whether done for sport or sustenance, hunting is primarily an activity that has no First Amendment implications, much like driving a car or going to work.

III. EVEN IF THE COURT HOLDS THAT SAMPLE COLLECTION IS NOT A FORM OF SPEECH, THE WYOMING'S PROVISIONS GOVERNING RECORDING SHOULD BE INVALIDATED.

Amici maintain that *all* forms of data collection prohibited under the Data Censorship Law are types of expression or conduct preparatory to speech, and are therefore subject to First Amendment scrutiny. If this Court were to find, however, that the collection of physical samples is not a form of expression or speech related conduct, it should at minimum recognize the unconstitutionality of the part of the law that imposes criminal and civil liability on persons who "acquire, gather, *photograph or otherwise preserve information in any form*" and record "*a legal description or geographical coordinates of the location of the collection*."[5] WYO.

[5] Under the conjunctive interpretation, all violations of the law require the recording of one's location, so the sample collection provision is linked to inherently expressive activity even if sample collection is not protected speech. This argument is offered in the event this Court follows the disjunctive interpretation.

STAT. ANN. §§ 6-3-414(e)(i); 40-27-101(h)(i). As argued above, these provisions prohibit forms of traditionally protected speech-producing conduct, from taking hand written notes to still photography and audiovisual recording. These types of information gathering activities sit at the core of the First Amendment and the issue surrounding their constitutional status has already been widely recognized. *See Glik*, 655 F.3d at 82; *Iacobucci*, 193 F.3d at 25; *Blackston*, 30 F.3d at 120; *Otter*, 118 F. Supp. 3d at (D. Idaho 2015); *Otter* 44 F. Supp. 3d at 1023; *Crawford*, 996 F. Supp. 2d at 617. Note taking, photography, and audiovisual recording are each inherently expressive as well as intimately connected with speech in ways that cannot be disregarded without substantially impairing citizens' ability to meaningfully participate in our constitutional democracy.

CONCLUSION

For the foregoing reasons, the District Court's decision should be reversed.

DATED: November 21, 2016.

Respectfully submitted,

/s/ Edward T. Ramey

EDWARD T. RAMEY
Counsel of Record
Tierney Lawrence, LLC
225 E 16th Avenue, Suite 350
Denver, Colorado 80203
(720) 242-7585
eramey@tierneylawrence.com

ALAN K. CHEN
William M. Beaney Memorial
Research Chair and Professor of Law
University of Denver
Sturm College of Law
2255 E. Evans Avenue
Denver, Colorado 80208
(303) 871-6283
achen@law.du.edu

CERTIFICATIONS

I hereby certify that this brief complies with the type-volume limitations of the Fed. R. App. P. 29(d) and 32(a)(7)(B) because this brief contains 6,995 words, including footnotes, but excluding the parts of the brief exempted by Fed. R. App. P. 32(a)(7)(B)(iii). This brief has been prepared in a proportionally spaced typeface using Microsoft Word 2010 in Times New Roman 14 point font.

Dated: November 21, 2016

/s/ Edward T. Ramey
Edward T. Ramey

CERTIFICATE OF DIGITAL SUBMISSION

Pursuant to the Tenth Circuit Court of Appeals General Order on Electronic Submission of Documents (March 18, 2009), I hereby certify that:

1. There are no required privacy redactions under 10th Cir. R. 25.5,

2. This ECF submission is an exact copy of paper copies to be filed with the Court within two business days of this electronic filing, and,

3. The electronic submission was scanned for viruses with the most recent version of Windows Defender, Version 4.10.14393.0, engine version 1.1.13303.0, last updated September 7, 2016, and according to the program is free of viruses.

Dated: November 21, 2016

/s/ Edward T. Ramey
Edward T. Ramey

CERTIFICATE OF SERVICE

I have this day, November 21, 2016, served the foregoing brief as an attachment to Motion for Leave to File Amicus Brief upon all parties through the ECF filing system.

Dated: November 21, 2016

/s/ Edward T. Ramey
Edward T. Ramey